

Shital Prasad Sahu v. State of U.P. — UUE recovery citation relegated to para 6.8

High Court of Judicature at Allahabad · Division Bench · 24 January 2019 · Writ - C No. 2664 of 2019 (Allahabad) · Writ - C No. 2664 of 2019 · **Writ disposed; petitioner directed to Executive Engineer under para 6.8; recovery stayed pending that decision.**

HEADNOTE

A writ to quash a recovery citation founded on a provisional assessment for unauthorized use of electricity (domestic LMV-1 load found used as commercial LMV-2) is not decided on merits. The consumer's remedy is to approach the Executive Engineer under para 6.8 of the U.P. Electricity Supply Code, 2005. The Engineer must consider fresh objections after a hearing and decide in accordance with law; meanwhile, subject to the consumer appearing as directed, recovery remains in abeyance. An objection annexure bearing no receiving of any authority is disbelieved.

FACTUAL SUMMARY

Shital Prasad Sahu, a domestic (LMV-1) consumer served by Dakshinanchal Vidyut Vitran Nigam in District Banda, sought quashing of a recovery citation dated 21 December 2018 for Rs 40,882 as electricity arrears. The demand originated in a 25 August 2015 provisional assessment of Rs 40,852 after a spot inspection found 1 kW commercial (LMV-2) use against a sanctioned 1 kW domestic load. He claimed he had filed objections on 3 September 2015; the High Court disbelieved that annexure because it bore no receiving of any authority.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

unauthorized use — remedy before Executive Engineer under para 6.8

HOLDING

Where recovery is sought on a provisional assessment for unauthorized use of electricity (here, 1 kW LMV-1 domestic load found used as LMV-2 commercial), the writ court will not quash the citation on merits. The consumer has the remedy of approaching the Executive Engineer under para 6.8 of the Electricity Supply Code, 2005. The Engineer shall consider fresh objections after granting an opportunity of hearing and decide in accordance with law; subject to the consumer appearing as directed, recovery pursuant to the citation remains in abeyance pending that decision. An objection copy with no receiving of any authority is disbelieved. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE UNAUTHORIZED-USE ASSESSMENT AND OF THE RECOVERY CITATION

Left to the Executive Engineer to decide the petitioner's fresh objections in accordance with para 6.8. ¶ 1